

Section 125. (Appeal to Supreme Court):

Any person aggrieved by any decision or order of the Appellate Tribunal, may, file an appeal to the Supreme Court within sixty days from the date of communication of the decision or order of the Appellate Tribunal, to him, on any one or more of the grounds specified in section 100 of the Code of Civil Procedure, 1908:

Provided that the Supreme Court may, if it is satisfied that the appellant was prevented by sufficient cause from filing the appeal within the said period, allow it to be filed within a further period not exceeding sixty days.

Section 126: (Assessment): --- (1) If on an inspection of any place or premises or after inspection of the equipments, gadgets, machines, devices found connected or used, or after inspection of records maintained by any person, the assessing officer comes to the conclusion that such person is indulging in unauthorized use of electricity, he shall provisionally assess to the best of his judgement the electricity charges payable by such person or by any other person benefited by such use.

(2) The order of provisional assessment shall be served upon the person in occupation or possession or in charge of the place or premises in such manner as may be prescribed.

¹[(3) The person, on whom an order has been served under sub- section (2) shall be entitled to file objections, if any, against the provisional assessment before the assessing officer, who shall, after affording a reasonable opportunity of hearing to such person, pass a final order of assessment within thirty days from the date of service of such order of provisional assessment of the electricity charges payable by such person.]

(4) Any person served with the order of provisional assessment, may, accept such assessment and deposit the assessed amount with the licensee within seven days of service of such provisional assessment order upon him:

²³[***]

³[(5) If the assessing officer reaches to the conclusion that unauthorised use of electricity has taken place, the assessment shall be made for the entire period during which such unauthorized use of electricity has taken place and if, however, the period during which such unauthorised use of electricity has taken place cannot be ascertained, such period shall be limited to a period of twelve months immediately preceding the date of inspection.]

(6) The assessment under this section shall be made at a rate equal to ⁴[twice] the tariff rates applicable for the relevant category of services specified in sub-section (5).

¹ Subs. by Act 26 of 2007, Sec.11 (w.e.f. 15th June 2007).

² The words “Provided that in case the person deposits the assessed amount he shall not be subjected to any further liability or any action by any authority whatsoever” omitted by Act 26 of 2007, Sec.11 (w.e.f. 15th June 2007).

³ Subs. by Act 26 of 2007, Sec.11 (w.e.f. 15th June 2007).

⁴ *subs.* by Act 26 of 2007, Sec. 11 for the words “one-and-half times” (w.e.f. 15th June 2007). ²
Subs. by Act 26 of 2007, Sec. 11 (w.e.f. 15th June 2007)

Explanation.- For the purposes of this section,-

- (a) “assessing officer” means an officer of a State Government or Board or licensee, as the case may be, designated as such by the State Government;
- (b) “unauthorised use of electricity” means the usage of electricity –
 - (i) by any artificial means; or
 - (ii) by a means not authorised by the concerned person or authority or licensee; or
 - (iii) through a tampered meter; or
 - ²[(iv) for the purpose other than for which the usage of electricity was authorised; or
 - (v) for the premises or areas other than those for which the supply of electricity was authorized.”]